

24PSCV02605 24PSCV02605

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F29%2F2026

Source SHA-256: c9526fe8b1cb0459e76b78cf559c319a89d8d3c82a6c126dd042eedf4974688d

Case Number: 24PSCV02605 Hearing Date: July 29, 2026 Dept: H

Alcantara,

et al. v. Cullens, et al., Case No. 24PSCV02605

ORDER ON MOTION

TO AMEND ANSWER

Defendant Scott Allan Cullens'

Motion for Leave to Amend Answer to Add Additional

Affirmative Defenses is GRANTED. The

Court directs counsel for Cullen to file a copy of Exhibit A attached to the Woodward

Declaration no later than 10 calendar days from the date of the hearing.

Background

Plaintiffs

Nepthali Alcantara and Hortencia

Alcantaradelopez (together, "Plaintiffs") contend that they sustained injuries and damages in a September 26, 2022 motor vehicle collision on the Interstate 210-West freeway.

On

August 13, 2024, Plaintiffs filed a complaint, asserting causes of action against Scott Allan Cullens ("Cullens"), Jebadiah Scott Cooper and Does 1-100 for: (1) Negligence, (2) Negligence Per Se, (3) Negligent Infliction of Emotional Distress, and (4) Negligent Hiring, Retention, Training and Supervision.

On

January 22, 2025, the Court sustained Cullens' demurrer to Plaintiffs' third cause of action, without leave to amend.

On

November 12, 2025, Cullens filed a "Notice of Stay of Proceedings," advising therein of his Chapter 7 bankruptcy. On April 30, 2026, the Court ordered the stay lifted.

The

Final Status Conference is set for November 20, 2026. Trial is set for December 8, 2026.

Legal Standard

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading..." (Code Civ. Proc., § 473, subd. (a)(1); and see § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order"].)

"[T]he trial court has wide discretion in allowing the amendment of any pleading." (Bedolla v. Logan & Frazer (1975) 52 Cal.App.3d 118, 135.) "[I]t is irrelevant that new legal theories are introduced as long as the proposed amendments relate to the same general set of facts." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [quotation marks and citation omitted].) "[E]ven if the proposed legal theory is a novel one, the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (Id. [quotation marks and citation omitted].) With that said, "the failure of a proposed amendment to state facts sufficient to constitute a cause of action or defense may support an order denying a motion to amend." (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280, disapproved of on other grounds in Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)

Courts

must apply a policy of great liberality in permitting amendments to pleadings at any stage of the proceedings, up to and including trial, when no prejudice

is shown to the adverse party. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.) However, “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial. . . denial may rest upon the element of lack of diligence in offering the amendment after knowledge of the facts, or the effect of the delay on the adverse party.” (Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 940.)

Also,

“[a] motion to amend a pleading before trial must:

(1)

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).)

Additionally,

“[a] separate declaration must accompany the motion and must specify:

(1) The

effect of the amendment;

(2) Why

the amendment is necessary and proper;

(3)

When the facts giving rise to the amended allegations were discovered; and

(4) The

reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).)

Discussion

Cullens

moves the Court for an order granting him leave to file a First Amended Answer to include the affirmative defenses of Sudden Emergency Doctrine and Doctrine of Imminent Peril. [FN1]

The

motion reflects compliance with California Rules of Court rule 3.1324. Cullens' counsel Lorraine G. Woodward ("Woodward") explains that she was assigned to this matter as Cullens' counsel near the end of September 2025 (Woodward Decl., ¶ 3); that the only topic discussed in her initial meeting with Cullens was Plaintiffs' alleged damages (Id., ¶ 4); that in October 2025, Cullens' bankruptcy attorney, requested that she file Cullens' bankruptcy with the Court (Id., ¶ 5); that she filed a motion to stay in November 2025 [FN2] pending Cullens' bankruptcy matter (Id., ¶ 6); that no further litigation was permitted in this case until the stay was lifted (Id., ¶¶ 5 and 7); that the stay was lifted on or about May 4, 2026 [FN3]; that she fully interviewed Cullens after the stay was lifted and learned about the circumstances of the subject accident for the first time (Id., ¶ 8); and that, upon learning the circumstances of the subject accident, she realized that the affirmative defenses of Sudden Emergency Doctrine and Doctrine of Imminent Peril were applicable but had not been asserted in Cullens' original answer (Id., ¶ 11).

The circumstances

presented here do not suggest that Cullen unduly delayed in seeking to amend his answer, nor have Plaintiffs articulated any prejudice by the amendment.

The motion is granted. The Court directs counsel for Cullen to file a copy of Exhibit A attached to Woodward Declaration no later than 10 calendar days from the date of the hearing.

[FN1] The motion was filed

(electronically served on July 6, 2026) on July 7, 2026; although the motion was timely filed, it should have been electronically served no later than July 2, 2026, given the July 3, 2026 court holiday. (See Code Civ. Proc., § 1010.6, subd. (a)(3)(B) [i.e., additional two court days' notice for electronic service].) That said, the motion has been timely opposed on the merits: It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion." (Tate v. Superior Court (1975) 45 Cal.App.3d 925, 930). The Court, then, will rule on the merits of the motion.

[FN2] The docket reflects that

Cullens filed a "Notice of Stay of Proceedings" on November 12, 2025, advising

therein of his Chapter 7 bankruptcy.

[FN3] The docket

reflects that the Court ordered the stay lifted on April 30, 2026.